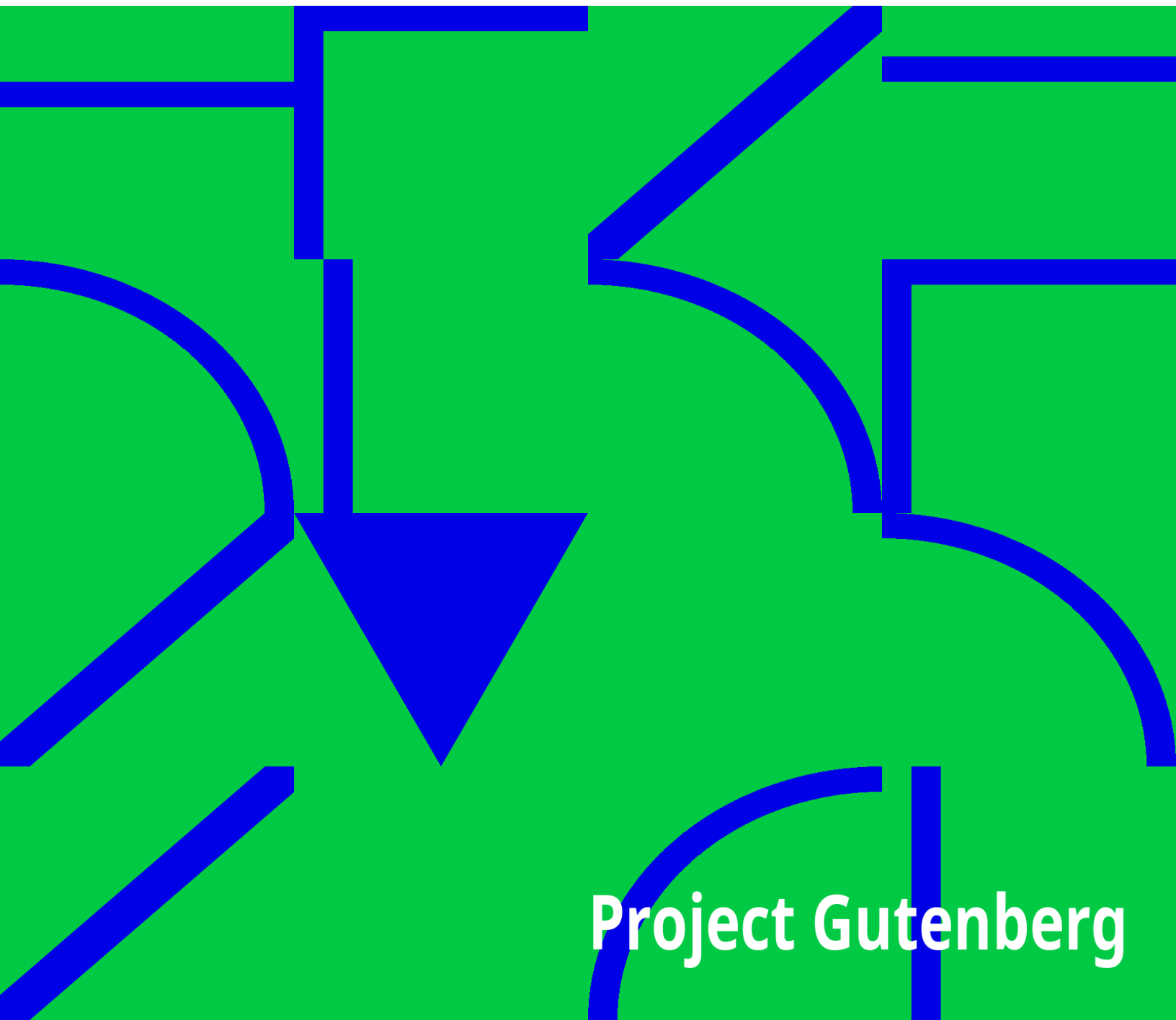


Conditions in Utah

Thomas Kearns

An abstract geometric pattern consisting of thick blue lines and shapes on a green background. The pattern includes several right angles, arcs, and a central downward-pointing triangle, creating a complex, non-representational design.

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Conditions in Utah

Thomas Kearns



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CONDITIONS IN UTAH.

**SPEECH
OF
HON. THOMAS KEARNS,
OF UTAH,

IN THE
SENATE OF THE UNITED STATES,**

Tuesday, February 28, 1905.

**WASHINGTON.
1905.**

SPEECH OF HON. THOMAS KEARNS.

POLYGAMOUS MARRIAGES AND PLURAL COHABITATION.

The PRESIDENT pro tempore. The Chair lays before the Senate the resolution submitted by the Senator from Idaho [Mr. DUBOIS], which will be read.

The Secretary read the resolution submitted yesterday by Mr. DUBOIS, as follows:

Resolved, That the Committee on the Judiciary be, and it is hereby, authorized and instructed to prepare and report to the Senate within thirty days after the beginning of the next session of Congress a joint resolution of the two Houses of Congress proposing to the several States amendments to the Constitution of the United States which shall provide, in substance, for the prohibition and punishment of polygamous marriages and plural cohabitation contracted or practiced within the United States and in every place subject to the jurisdiction of the United States; and which shall, in substance, also require all persons taking office under the Constitution or laws of the United States, or of any State, to take and subscribe an oath that he or she is not, and will not be, a member or adherent of any organization whatever the laws, rules, or nature of which organization require him or her to disregard his or her duty to support and maintain the Constitution and laws of the United States and of the several States.

Mr. KEARNS. Mr. President, I will not permit this occasion to pass without saying, with brevity and such clearness as I can command, what it seems to me should be said by a Senator, under these circumstances, before leaving public life. Something is due to the State which has honored me; something is due to the record which I have endeavored to maintain honorably before the world and something, by way of information, is due to the Senate and the country.

Utah, the newest of the States, to me the best beloved of all the States, appears to be the only one concerning which there is a serious conflict with the country. I was not born in Utah, but I have spent all the years of my manhood there, and I love the Commonwealth and its people. In what I say there is malice toward none, and I hope to make it just to all. If the present day does not accept my statements and appreciate my motives, I can only trust that time will prove more gentle and that in the future those who care to revert to these remarks will know that they are animated purely by a hope to bring about a better understanding between Utah and this great nation.

Utah was admitted to statehood after, and because of, a long series of pledges exacted from the Mormon leaders, the like of which had never before been known in American history. Except for those pledges, the sentiment of the United States would never have assented to Utah's admission. Except for the belief on the part of Congress and the country that the extraordinary power which abides in that State would maintain these pledges, Utah would not have been admitted. There is every reason to believe that the President who signed the bill would have vetoed it if he had not been convinced that the pledges made would be kept.

THE PLEDGES.

As a citizen of the State and a witness to the events and words which constitute those pledges, as a Senator of the United States, I give my word of honor to you that I believed that these pledges consisted of the following propositions:

First. That the Mormon leaders would live within the laws pertaining to plural marriage and the continued plural marriage relation, and that they would enforce this obligation upon all of their followers, under penalty of disfellowship.

Second. That the leaders of the Mormon Church would no longer exercise political sway, and that their followers would be free and would exercise their freedom in politics, in business, and in social affairs.

As a citizen and a Senator I give my word of honor to you that I believed that these pledges would be kept in the spirit in which Congress and the

country accepted them, and that there would never be any violation, evasion, denial, or equivocation concerning them.

I appeal to such members of this body as were in either House of Congress during the years 1890 to 1896, if it was not their belief at that time that the foregoing were the pledges and that they would be kept; and I respectfully insist that every Senator here who was a member of either House at that time would have refused to vote for Utah's admission unless he had firmly believed as I have stated.

1. Utah, secured her statehood by a solemn compact made by the Mormon leaders in behalf of themselves and their people.
2. That compact has been broken willfully and frequently.
3. No apostle of the Mormon Church has publicly protested against that violation.

I know the gravity of the utterances that I have just made. I know what are the probable consequences to myself. But I have pondered long and earnestly upon the subject and have come to the conclusion that duty to the innocent people of my State and that obligation to the Senate and the country require that I shall clearly define my attitude.

RELIGION NOT INVOLVED.

This is no quarrel with religion. This is no assault upon any man's faith. This is rather the reverence toward the inherent right of all men to believe as they please, which separates religious faith from irreligious practice. The Mormon people have a system of their own, somewhat complex, and gathered from the mysticisms of all the ages. It does not appeal to most men; but in its purely theological domain it is theirs, and I respect it as their religion and them as its believers.

The trouble arises now, as it has frequently arisen in the past, from the fact that some of the accidental leaders of the movement since the first zealot founder have sought to make of this religion not only a system of morals, sometimes quite original in themselves, but also a system of social relation, a system of finance, a system of commerce, and a system of politics.

THE SOCIAL ASPECT.

I dismiss the religion with my profound respect; if it can comfort them, I would not, if I could, disturb it. Coming to the social aspect of the society, it is apparent that the great founder sought first to establish equality among men, and then to draw from those equal ranks a special class, who were permitted to practice polygamy and to whom special privileges were accorded in their association with the consecrated temples and the administration of mystic ordinances therein. The polygamous group, or cult as it may be called, soon became the ruling factor in the organization; and it may be observed that ever since the founding of the church almost every man of prominence in the community has belonged to this order. It was so in the time of the martyrs, Joseph and Hyrum Smith, who were killed at Carthage jail in Illinois, and both of whom were polygamists, although it was denied at the time. There were living until recently, and perhaps there are living now, women who testified that they were married in polygamy to one or the other of these two men, Joseph having the larger number. It has been so ever since and is so to-day that nearly every man of the governing class has been or is a polygamist.

Brigham Young succeeded Joseph Smith, and he set up a kind of kingly rulership, not unbecoming to a man of his vast empire-building power. The Mormons have been taught to revere Joseph Smith as a direct prophet from God. He saw the face of the All Father. He held communion with the Son. The Holy Ghost was his constant companion. He settled every question, however trivial, by revelation from Almighty God. But Brigham was different. While claiming a divine right of leadership, he worked out his great mission by palpable and material means. I do not know that he ever pretended to have received a revelation from the time that he left Nauvoo until he reached the shores of the Dead Sea, nor through all the thirty years of his leadership there. He seemed to regard his people as children who had to be led through their serious calamities by holding out to them the glittering thought of divine guardianship. So firmly did Brigham establish the social order in Utah that all of the people were equal, except the governing body. This may be said to consist of the president and his two counsellors, they three constituting the first presidency; the twelve apostles; the presiding bishopric, consisting of three men, the chief bishops of the

church but much lower in rank than the apostles; the seven presidents of seventies, who are, under the apostles, the subordinate head of the missionary service of the church; and the presiding patriarch. These altogether constitute a body of twenty-six men. There are local authorities in the different stakes of Zion, as they are called, corresponding to counties in a State, but with these it is not necessary to deal.

Practically all of these men under Brigham Young were polygamists. They constituted what one of their number once called the "elite class" of the community. To attain this rank one usually had to show ability, and attaining the rank he was quite certain to enter into or extend his already existing plural-marriage relations. These rulers were looked upon with great reverence. Brigham Young, besides being a prophet of God, as they believed, had led them through the greatest march of the ages. His nod became almost superhuman in its significance. His frown was as terrible to them as the wrath of God. He upheld all the members of the polygamistic and governing class by his favoritism toward them. He supremely, and they subordinately, ruled the community as if they were a king and a house of peers, with no house of commons. Not elsewhere in the United States, and not in any foreign country where civilization dwells, has there been such a complete mastery of man over modern men. The subordinates and the mass would perform the slightest will of Brigham Young. When he was not present the mass would perform the will of any of the subordinates speaking in his name. Below this privileged class stood the common mass. It had its various gradations of title, but, with the exception of rare instances of personal power, there was equality in the mass. For instance, as business was a part of their system, the local religious authority in some remote part might be the business subordinate of some other man of less ecclesiastical rank, with the result that this peculiar intermingling kept them all practically upon one level of social order; and the man who made adobes under the hot sun of the desert through all the week might still be the religious superior of the richest man in the local community, and they met on terms of equality and friendship. Their children might intermarry, the difference in wealth being countervailed by a difference in ecclesiastical authority.

It was a strange social system, this, with Brigham Young and his coterie of advisers, to the number of twenty-six, standing at the head, self-

perpetuating, the chief being able to select constantly to fill the ranks as they might be depleted by death; and all these ruling over one solid mass of equal caste who thought that the rulers were animated by divine revelation, holding the right to govern in all things on earth and with authority extending into heaven.

So firmly intrenched was their social system that when Brigham Young passed away his various successors who came in time to his place by accident of seniority of service found ample opportunity without difficulty to perpetuate this system and to maintain their social autocracy. As the matter has appeared so fully before the country, I will not speak further of the method of succession, but will merely call to your minds that after Brigham Young came John Taylor, then Wilford Woodruff, then Lorenzo Snow, then Joseph F. Smith, the present ruler.

Under these several men the social autocracy has had its varying fortunes, but at the present time it is probably at as high a point as it ever reached under the original Joseph or under Brigham Young. The president of the church, Joseph F. Smith, affects a regal state. His home consists of a series of villas, rather handsome in design, and surrounded by such ample grounds as to afford sufficient exclusiveness. In addition to this he has an official residence of historic character near to the office which he occupies as president. When he travels he is usually accompanied by a train of friends, who are really servitors. When he attends social functions he appears like a ruler among his subjects. And in this respect I am not speaking of Mormon associations alone, for there are many Gentiles in and out of Utah who seem to take delight in paying this extraordinary deference.

If I have seemed to speak at length upon this mere social phase it has not been without a definite purpose. I want you to know how this religion, claiming to recognize and secure the equality of men, immediately established and has maintained for the mass of its adherents that social equality, but has elevated a class of its rulers to regal authority and splendor. Understanding how the chief among them has the dignity of a monarch in their social relations, you will better understand the business and political autocracy which he has been able to establish.

In all this social system each apostle has his great part. He is inseparable from it. He wields now, as does a minister at court, such part of the power as the monarch may permit him to enjoy, and it is his hope and expectation that he will outlive those who are his seniors in rank in order that he may become the ruler.

Therefore, if there be evil in this social relation as I have portrayed it, every apostle is responsible for a part of that evil. They enjoy the honors of the social class; they help to exert the tyranny over the subjugated mass. Those of you who do me the honor to follow my remarks will realize how close is the relation between the apostles and the president, and that the apostle is a responsible part of the governing power. While I may speak of the president of the church segregated from his associates and as the monarch, it must be understood constantly that he maintains his power by the support of the apostles, who keep the mass in order and in subjugation to his will, expressed through them.

THE BUSINESS MONOPOLY.

Whatever may have been its origin or excuse, the business power of the president of the church and of the select class which he admits into business relations with him is now a practical monopoly, or is rapidly becoming a monopoly, of everything that he touches. I want to call your attention to the extraordinary list of worldly concerns in which this spiritual leader holds official position. The situation is more amazing when you are advised that this man came to his presidency purely by accident, namely, the death of his seniors in rank; that he had never known any business ability, and that he comes to the presidency and the directorship of the various corporations solely because he is president of the church. He is already reputed to be a wealthy man, and his statement would seem to indicate that he has large holdings in the various corporations with which he is associated, although previous to his accession to the presidency of the church he made a kind of proud boast among his people of his poverty.

He conducts railways, street-car lines, power and light companies, coal mines, salt works, sugar factories, shoe factories, mercantile houses, drug stores, newspapers, magazines, theaters, and almost every conceivable kind

of business, and in all of these, inasmuch as he is the dominant factor by virtue of his being the prophet of God, he asserts indisputable sway. It is considered an evidence of deference to him, and good standing in the church, for his hundreds of thousands of followers to patronize exclusively the institutions which he controls.

And this fact alone, without any business ability on his part, but with capable subordinate guidance for his enterprises, insures their success, and danger and possible ruin for every competitive enterprise. Independent of these business concerns, he is in receipt of an income like unto that which a royal family derives from a national treasury. One-tenth of all the annual earnings of all the Mormons in all the world flows to him. These funds amount to the sum of \$1,000,000 annually, or 5 per cent upon \$32,000,000, which is one-quarter of the entire taxable wealth of the State of Utah. It is the same as if he owned, individually, in addition to all his visible enterprises, one-quarter of all the wealth of the State and derived from it 5 per cent of income without taxation and without discount. The hopelessness of contending in a business way with this autocrat must be perfectly apparent to your minds. The original purpose of this vast tithe, as often stated by speakers for the church, was the maintenance of the poor, the building of meetinghouses, etc. To-day the tithes are transmuted, in the localities where they are paid, into cash, and they flow into the treasury of the head of the church. No account is made, or ever has been made, of these tithes. The president expends them according to his own will and pleasure, and with no examination of his accounts, except by those few men whom he selects for that purpose and whom he rewards for their zeal and secrecy. Shortly after the settlement of the Mormon Church property question with the United States the church issued a series of bonds, amounting approximately to \$1,000,000, which were taken by financial institutions. This was probably to wipe out a debt which had accumulated during a long period of controversy with the nation. But since, and including the year 1897, which was about the time of the issue of the bonds, approximately \$9,000,000 have been paid as tithes. If any of the bonds are still outstanding, it is manifestly because the president of the church desires for reasons of his own to have an existing indebtedness.

It will astound you to know that every dollar of United States money paid to any servant of the Government who is a Mormon is tithed for the benefit of

this monarch. Out of every \$1,000 thus paid he gets \$100 to swell his grandeur. This is also true of money paid out of the public treasury of the State of Utah to Mormon officials. But what is worst of all, the monarch dips into the sacred public school fund and extracts from every Mormon teacher one-tenth of his or her earnings and uses it for his unaccounted purposes; and, by means of these purposes and the power which they constitute, he defies the laws of his State, the sentiment of his country, and is waging war of nullification on the public school system, so dear to the American people. No right-thinking man will oppose any person as a servant of the nation or the State or as a teacher in the public schools on account of religious faith. As I have before remarked, this is no war upon the religion of the Mormons; and I am only calling attention to the monstrous manner in which this monarch invades all the provinces of human life and endeavors to secure his rapacious ends.

In all this there is no thought on my part of opposition to voluntary gifts by individuals for religious purposes or matters connected legitimately with religion. My comment and criticism are against the tyranny which misuses a sacred name to extract from individuals the moneys which they ought not to spare from family needs, and which they do not wish to spare; my comment and criticism relate to the power of a monarch whose tyranny is so effective as that not even the moneys paid by the Government are considered the property of the Government's servant until after this monarch shall have seized his arbitrary tribute, with or without the willing assent of the victim, so that the monarch may engage the more extensively in commercial affairs, which are not a part of either religion or charity.

With an income of 5 per cent upon one-quarter of the entire assessed valuation of the State of Utah to-day, how long will it take this monarch, with his constantly increasing demands for revenue, to so absorb the productive power that he shall be receiving an income of 5 per cent upon one-half the property, and then upon all of the property of the State? This is worse than the farming of taxes under the old French Kings. Will Congress allow this awful calamity to continue?

The view which the people of the United States entertained on this subject forty years ago was shown by the act of Congress in 1802, in which a provision, directed particularly against the Mormon Church, declared that

no church in a Territory of the United States should have in excess of \$50,000 of wealth outside of the property used for purposes of worship. It is evident that as early as that time the pernicious effects of a system which used the name of God and the authority of religion to dominate in commerce and finance were fully recognized.

This immense tithing fund is gathered directly from Mormons, but the burden falls in some degree upon Gentiles also. Gentiles are in business and suffer by competition with tithe-supported business enterprises. Gentiles are large employers of Mormon labor; and as that labor must pay one-tenth of its earnings to support competitive concerns, the Gentile employer must pay, indirectly at least, the tithe which may be utilized to compete with, and even ruin, him in business.

And in return it should be noted that Mormon institutions do not employ Gentiles except in rare cases of necessity. The reason is obvious: Gentiles do not take as kindly to the tithing system as do the Mormons.

The Mormon citizen of Utah has additional disadvantages. After paying one-tenth of all his earnings as a tithe offering, he is called upon to erect and maintain the meetinghouses and other edifices of the church; he is called upon to donate to the poor fund in his ward, through his local bishop; he is called upon to sustain the Women's Relief Society, whose purpose is to care for the poor and to minister to the sick; he is called upon to pay his share of the expense for the 2,500 missionaries of the church who are constantly kept in the field without drawing upon, the general funds of the church. When all this is done, it is found that, in defiance of the old and deserved boast of the predecessors of the present president, there are some Mormons in the poorhouses of Utah, and these are sustained by the public taxes derived from the Gentiles and Mormons alike.

Broadly speaking, the Gentiles compose 35 per cent of the population and pay one-half of the taxes of Utah. In the long run they carry their share of all these great charges.

The almost unbearable community burden which is thus inflicted must be visible to your minds without argument from me.

Let it be sufficient on this point for me to say that all the property of Utah is made to contribute to the grandeur of the president of the church, and that at his instance any industry, any institution, within the State, could be destroyed except the mining and smelting industry. Even this industry his personal and church organ has attacked with a threat of extermination by the courts, or by additional legislation, if the smelters do not meet the view expressed by the church organ.

Mr. President, I ask to have read at this point an editorial from the Deseret Evening News of October 31, 1904, which I send to the desk.

The PRESIDENT pro tempore. The Secretary will read as requested.

The Secretary read as follows:

DESERET EVENING NEWS.

[Organ of the Church of Jesus Christ of Latter-Day Saints.]

SALT LAKE CITY, *October 31, 1904.*

AWAY WITH THE NUISANCE.

The people of Salt Lake City are waking up to the realization of the trouble of which our cousins out in the country are complaining. The sulphurous fumes which have been tasted by many folks here, particularly late at night, are not only those of a partisan nature emanating from the smokestacks of the slanderers and maligners, but are treats bestowed upon our citizens by the smelters, and are samples of the goods, or rather evils, which farmers and horticulturists have been burdened with so long. Complaints have come to us from some of the best people of the city, of different faiths and parties, that the air has been laden with sulphurous fumes that can not only be felt in the throat, but tasted in the mouth, and they rest upon the city at night, appearing like a thin fog.

The fact is this smelter smoke will have to go; there is no mistake about that. If the smelters can not consume it, they will have to close up. This fair county must not be devastated and this city must not be rendered

unhealthful by any such a nuisance as that which has been borne with now for a long time. The evasive policy that has been pursued, the tantalizing treatment toward the farmers who have vainly sought for redress, the destruction that has come upon vegetation and upon live stock, and now the choking fumes that reach this city all demand some practical remedy in place of the shilly-shally of the past.

The Deseret News has counseled peace, consideration for the smelter people in the difficulties that they have to meet, favor toward a valuable industry that should be encouraged on proper lines, and arbitration instead of litigation. But it really seems now as though an aggressive policy will have to be pursued, or ruin will come to the agricultural pursuits of Salt Lake County, while the city will not escape from the ravages of the smelter fiend. If the companies that control those works will not or can not dispose of the poisonous metallic fumes that pour out of their smokestacks, the fires will have to be banked and the nuisance suppressed. We do not believe the latter is the necessary alternative. We are of opinion that the evil can be disposed of, and we are sure that efforts ought to be made to effect it without further delay.

It looks as if the courts will have to be appealed to to obtain compensation for damages already inflicted. Also that they will have to be applied to for injunctions against the continuance of the cause of the trouble. We think there is law enough now to proceed under. But if that is not the case, then legislation must be had to fully cover the ground. Litigation will have to come first, legislation afterwards. However that may be, temporizing with the evil will not do. Patience has ceased to be a virtue in this matter. The conviction is fastening itself upon the public mind that no active steps are intended by the responsible parties, but simply a policy of delay. They must be taught that this will not answer the purpose, and that the injured people will not be fooled in that way. The smelter smoke must go. And it must not go in the old way.

The proposition to put the matter in the hands of experts chosen by the complainants is not to be seriously considered. The onus is upon the smelter men; they are the offenders, and they must take the steps necessary to remove the cause of complaint, and also reimburse those who have been injured. We do not ask anything unreasonable. We join with those of our

citizens who Intend that this beautiful part of our lovely State shall not be laid waste, even if the only cure is the suppression of the destroying cause. This may as well be understood first as last. Useless practical measures are adopted to abate the evil, active proceedings will have to be taken and pushed to the utmost to remove entirely the root and branch and trunk and body of this tree of destruction. The people affected are deeply in earnest, and they certainly mean business.

Mr. KEARNS. Mr. President, I must not burden you with too many details, but in order for you to see how complete is the business power of this man I will cite you to one case. The Great Salt Lake is estimated to contain 14,000,000,000 tons of salt. Probably salt can be made cheaper on the shores of this lake than anywhere else in the world. Nearly all its shore line is adaptable for salt gardens. The president of the church is interested in a large salt monopoly which has gathered in the various smaller enterprises. He is president of a railroad which runs from the salt gardens to Salt Lake City, connecting there with trunk lines. It costs to manufacture the salt and place it on board the cars 75 cents per ton. He receives for it \$5 and \$6 per ton. His company and its subsidiary corporation are probably capitalized at three-quarters of a million dollars, and upon this large sum he is able to pay dividends of 8 or 10 per cent.

Not long since two men, who for many years had been tithe payers and loyal members of the church, undertook to establish a salt garden along the line of a trunk railway. One of them was a large dealer in salt, and proposed to extend his trade by making the salt and reaching territory prohibited to him by the church price of salt; the other was the owner of the land upon which it was proposed to establish the salt garden. These men formed a corporation, put in pumping stations and flumes, and the corporation became indebted to one of the financial institutions over which the church exercised considerable influence. Then the president of the church sent for them. There is scarcely an instance on record where a message of this kind failed of its purpose. These men went to meet the prophet, seer, and revelator of God, as they supposed, but he had laid aside his robes of sanctity for the moment and he was a plain, unadorned, aggressive, if not an able, business man. He first denounced them for interfering with a business which he had made peculiarly his own; and, when they protested that they

had no intention to interfere with his trade, but were seeking new markets, he declared in a voice of thunderous passion that if they did not cease with their projected enterprise, he would crush them. They escaped from his presence feeling like courtiers repulsed from the foot of a king's throne, and then surveyed their enterprise. If they stopped, they would lose all the money invested and their enterprise would possibly be sold out to their creditors; if they went on and invested more money, the president had the power, as he had threatened, to crush them. Not only could he ruin their enterprise, but he could ostracise them socially and could make of them marked and shunned men in the community where they had always been respected.

Is there menace in this system? To me it seems like a great danger to all the people who are now affected, and therefore of great danger to the people of the United States, because the power of this monarchy within the Republic is constantly extending. If it be an evil, every apostle is in part responsible for this tyrannical course. He helped to elect the president; he does the president's bidding, and shares in the advantages of that tyranny.

I did not call the social system a violation of the pledges to the country, but I do affirm that the business tyranny of Mormon leaders is an express violation of the covenant made, for they do not leave their followers free in secular affairs. They tyrannize over them, and their tyranny spreads even to the Gentiles. In all this I charge that every apostle is a party to the wrong and to the violation. Although I speak of the president of the church as the leader, the monarch in fact, every apostle is one of his ministers, one of his creators, and also one of his creatures, and possibly his successor; and the whole system depends upon the manner in which the apostles and the other leaders shall support the chief leader. As no apostle has ever protested against this system, but has, by every means in his power, encouraged it, he can not escape his share of the responsibility for it. It is an evil; they aid it. It is a violation of the pledge upon which statehood was granted; they profit by it.

THE POLITICAL AUTOCRACY.

I pass now to the political aspect of this hierarchy, as some call it, but this monarchy as I choose to term it.

I have previously called your attention to the social and business powers, monopolies, autocracies, exercised by the leaders. Through these channels of social and business relations they can spread the knowledge of their political desires without appearing obtrusively in politics. When the end of their desire is accomplished, they affect to wash their hands of all responsibility by denying that they engaged in political activities. Superficial persons, and those desiring to accept this argument, are convinced by it. But never, in the palmy days of Brigham Young, was there a more complete political tyranny than is exercised by the present president of the Mormon Church and his apostles, who are merely awaiting the time when by the death of their seniors in rank they may become president, and select some other man to hold the apostleship in their place—as they now hold it in behalf of the ruling monarch.

In this statement I merely call your attention to what a perfect system of ecclesiastical government is maintained by these presidents and apostles; and I do not need to more than indicate to you what a wonderful aid their ecclesiastical government can be, and is, in accomplishing their political purposes.

Parties are nothing to these leaders, except as parties may be used by them. So long as there is Republican administration and Congress, they will lead their followers to support Republican tickets; but if, by any chance, the Democratic party should control this Government, with a prospect of continuance in power, you would see a gradual veering around under the direction of the Mormon leaders. When Republicans are in power the Republican leaders of the Mormon people are in evidence and the Democratic leaders are in retirement. If the Democracy were in power, the Republican leaders of the Mormon people would go into retirement and Democrats would appear in their places. No man can be elected to either House of Congress against their wish. I will not trespass upon your patience long enough to recite the innumerable circumstances that prove this assertion, but will merely refer to enough instances to illustrate the method. In 1897, at the session of the legislature which was to elect a Senator, and which was composed of sixty Democrats and three Republicans, Moses

Thacher was the favored candidate of the Democracy in the State. He had been an apostle of the Mormon Church, but had been deposed because he was out of harmony with the leaders. The Hon. Jos. L. Rawlins was a rival candidate, but not strongly so at first. He was encouraged by the church leaders in every way; and finally, when his strength had been advanced sufficiently to need but one vote, a Mormon Republican was promptly moved over into the Democratic column and he was elected by the joint assembly. I do not charge that Hon. Joseph L. Rawlins, who occupied a seat with distinguished honor in this great body for six years, had any improper bargain with the church, or any knowledge of the secret methods by which his election was being compassed; but he was elected under the direction of the leaders of the church because they desired to defeat and further humiliate a deposed apostle.

I will not ignore my own case. During nearly three years I have waited this great hour of justice in which I could answer the malignant falsehood and abuse which has been heaped upon a man who is dead and can not answer, and upon myself, a living man willing to wait the time for answer. Lorenzo Snow, a very aged man, was president of the church when I was elected to the Senate. He had reached that advanced time of life, being over eighty, when men abide largely in the thoughts of their youth. He was my friend in that distant way which sometimes exists without close acquaintanceship, our friendship (if I may term it such) having arisen from the events attendant upon Utah's struggle for statehood. For some reason he did not oppose my election to the Senate. Every other candidate for the place had sought his favor; it came to me without price or solicitation on my part. The friends and mouthpieces of some of the present leaders have been base enough to charge that I bought the Senatorship from Lorenzo Snow, president of their own church. Here and now I denounce the calumny against that old man, whose unsought and unbought favor came to me in that contest. That I ever paid him one dollar of money, or asked him to influence legislators of his faith, is as cruel a falsehood as ever came from human lips. So far as I am concerned he held his power with clean hands, and I would protect the memory of this dead man against all the abuse and misrepresentation which might be heaped upon him by those who were his adherents during life, but who now attack his fame in order that they may pay the greater deference to the present king.

You must know that in that day we were but five years old as a State. Our political conditions were and had been greatly unsettled. The purpose of the church to rule in politics had not yet been made so manifest and determined. Lorenzo Snow held his office for a brief time—about two years. What he did in that office pertaining to my election I here and now distinctly assume as my burden, for no man shall with impunity use his hatred of me to defame Lorenzo Snow and dishonor his memory to his living and loving descendants.

As for myself, I am willing to take the Senate and the country into my confidence, and make a part of the eternal records of the Senate, for such of my friends as may care to read, the vindication of my course to my posterity. I had an ambition, and not an improper one, to sit in the Senate of the United States. My competitors had longer experience in politics and may have understood more of the peculiar situation in the State. They sought what is known as church influence. I sought to obtain this place by purely political means. I was elected. After all their trickery my opponents were defeated, and to some extent by the very means which they had basely invoked. I have served with you four years, and have sought in a modest way to make a creditable record here. I have learned something of the grandeur and dignity of the Senate, something of its ideals, which I could not know before coming here. I say to you, my fellow Senators, that this place of power is infinitely more magnificent than I dreamed when I first thought of occupying a seat here. But were it thrice as great as I now know it to be, and were I back in that old time of struggle in Utah, when I was seeking for this honor, I would not permit the volunteered friendship of President Snow to bestow upon me, even as an innocent recipient, one atom of the church monarch's favor. My ideals have grown with my term of service in this body, and I believe that the man who would render here the highest service to his country must be careful to attain to this place by the purest civic path that mortal feet can tread.

I have said enough to indicate that for my own part I never countenanced, nor knowingly condoned, the intrusion of the church monarchy into secular affairs. And I have said enough to those who know me to prove for all time that, so far as I am concerned, my election here was as honorable as that of any man who sits in this chamber; and yet I have said enough that all men may know that rather than have a dead man's memory defamed on my

account, I will make his cause my own and will fight for the honor which he is not on earth to defend. This will not suit the friends and mouthpieces of the present rulers, but I have no desire to satisfy or conciliate them; and in leaving this part of the question, I avenge President Snow sufficiently by saying that these men did not dare to offend his desire nor dispute his will while he was living, and only grew brave when they could cry: "Lorenzo, the king, is dead! Long live Joseph, the king!"

As a Senator I have sought to fulfill my duty to the people of this country. I am about to retire from this place of dignity. No man can retain this seat from Utah and retain his self-respect after he discovers the methods by which his election is procured and the objects which the church monarchy intends to achieve. Some of my critics will say that I relinquished that which I could not hold. I will not pause to discuss that point further than to say that if I had chosen to adopt the policy with the present monarch of the church, which his friends and mouthpieces say I did adopt with the king who is dead, it might have been possible to retain this place of honor with dishonor.

Every apostle is a part of this terrible power, which can make and unmake at its mysterious will and pleasure. Early in 1902 warning had been publicly uttered in the State against the continued manifestation of church power in politics. The period of unsettled conditions during which I was elected had ended and we had opportunity to see the manner in which the church monarch was resuming his forbidden sway; and we had occasion to know the indignant feelings entertained by the people of the United States when they contemplated the flagrant breaking of the pledge given to the country to secure the admission of Utah. I myself, after conference with distinguished men at Washington, journeyed to Utah and presented a solemn protest and warning to the leaders of the church against the dangerous exercise of their political power. I did it to repay a debt which I owed to Utah, and not for any selfish reason. I knew that from the day I uttered that warning the leaders of the Mormon Church would hate and pursue me for the purpose of wreaking their vengeance. But as the consequences of their misconduct, their pledge breaking would fall upon all of the people of the State, upon the innocent more severely than upon the guilty, I felt that I must assert my love and gratitude to the State, even though my warning should lead to my own destruction by these autocrats. If

there had been one desire in my heart to effect a conjunction with this church monarchy, if I had been willing to retain office as its gift, I would not have taken this step, for I knew its consequences. I began in that hour my effort to restore to the people of Utah the safety and the political freedom which are their right, and I shall continue it while I live until the fight is won.

The disdain with which that message was received was final proof of the contempt in which that church monarchy holds the Senate and the people of the United States, and of the disregard in which the church monarchy holds the pledges which it made in order to obtain the power of statehood.

They do not need to utter explicit instructions in order to assert their demand. The methods of conveying information of their desire are numerous and sufficiently effective, as is proved by results. To show how completely all ordinary political conditions, as they obtain elsewhere in the United States, are without account in Utah, I have but to cite you to the fact that after the recent election, which gave 57 members out of 63 on joint ballot to the Republican party, and when the question of my successor became a matter of great anxiety to numerous aspirants for this place, the discussion was not concerning the fitness of candidates, nor the political popularity of the various gentlemen who composed that waiting list, nor the pledges of the legislators, but was limited to the question as to who could stand best with the church monarchy; as to whom it would like to use in this position; as to who would make for the extension of its ambitions and power in the United States.

THE MORMON MARRIAGE RELATION.

And now I come to a subject concerning which the people of the United States are greatly aroused. It is known that there have been plural marriages among the Mormon people, by sanction of high authorities in this church monarchy, since the solemn promise was made to the country that plural marriages should end. It is well known that the plural marriage relations have been continued defiantly, according to the will and pleasure of those who had formerly violated the law, and for whose obedience to law the church monarchy pledged the faith and honor of its leaders and followers

alike in order to obtain statehood. The pledge was made repeatedly, as stated in an earlier part of these remarks, that all of the Mormon people would come within the law. They have not done so. The church monarch is known to be living in defiance of the laws of God and man, and in defiance of the covenant made with the country, upon which amnesty by the President, and statehood by the President and the Congress, were granted.

I charge that every apostle is in large part responsible for this condition, so deplorable in its effects upon the people of Utah and so antagonistic to the institutions of this country. Every apostle is directed by the law-breaking church monarch. Every apostle teaches by example and precept to the Mormon people that this church monarch is a prophet of God, to offend or criticise whom is a sin in the sight of the Almighty. Every apostle helps to appoint to office and sustain the seven presidents of seventies, who are below them in dignity, and they are directly responsible for them and their method of life.

It is quite evident that the church monarchy is endeavoring to reestablish the rule of a polygamous class over the mass of the Mormon people. Of the apostles not practicing polygamy there is at most only three or four men constituting the quorum of which this could be truthfully said. Special reasons may exist in some particular case why a man in this class has not entered into such relation.

THE GENERAL SITUATION.

Briefly reviewing the matters which I have offered here, and the logical deductions therefrom, I maintain the following propositions:

We set aside the religion of the Mormon people as sacred from assault.

Outside of religion the Mormons as a community are ruled by a special privileged class, constituting what I call the church monarchy.

This monarchy pledged the country that there would be no more violations of law and no more defiance of the sentiment of the United States regarding polygamy and the plural marriage relation.

This monarchy pledged the United States that it would refrain from controlling its subjects in secular affairs.

Every member of this monarchy is responsible for the system of government and for the acts of the monarchy, since (as shown in the cases of the deposed apostle, Moses Thatcher, and others) the man who is not in accord with the system is dropped from the ruling class.

This monarchy sets up a regal social order within this Republic.

This monarchy monopolizes the business of one commonwealth and is rapidly reaching into others.

This monarchy takes practically all the surplus product of the toil of its subjects for its own purpose, and makes no account to anyone on earth of its immense secret fund.

This monarchy rules all politics in Utah, and is rapidly extending its dominion into other States and Territories.

This monarchy permits its favorites to enter into polygamy and to maintain polygamous relations, and it protects them from prosecution by its political power.

Lately no effort has been made to punish any of these people by the local law. On the contrary, the ruling monarch has continued to grow in power, wealth, and importance. He sits upon innumerable boards of directors, among others that of the Union Pacific Railway, where he joins upon terms of fraternity with the great financial and transportation magnates of the United States, who hold him in their councils because his power to benefit or to injure their possessions must be taken into account.

I charge that no apostle has ever protested publicly against the continuation of this sovereign authority over the Mormon kingdom.

Within a few months past the last apostle elected to the quorum was a polygamist—Charles W. Penrose—and his law-breaking career is well known. Previous to 1889 Penrose was living publicly with three wives. Under false pretenses to President Cleveland he obtained amnesty for his past offenses. He represented that he had but two wives, and that he married

his second wife in 1862, while it was generally known that he took a third wife just prior to 1888. He promised to obey the law in the future, and to urge others to do so; yet after that amnesty, obtained by concealing his third marriage from President Cleveland, he continued living with his three wives. His action in this matter has been notorious. He has publicly defended this kind of lawbreaking on the false pretense that there was a tacit understanding with the American Congress and people, when Utah was admitted, that these polygamists might continue to live as they had been living.

And it was this traitor to his country's laws, this unrepentant knave and cheat of the nation's mercy, this defamer of Congress and the people, that was elected to the apostleship to help govern the church, and through the church the State.

Is it not demonstrated that Utah is an abnormal State? Our problem is vast and complex. I have endeavored to simplify it so that the Senate and the country may readily grasp the questions at issue.

THE REMEDY.

Will this great body, will the Government of the United States, go on unheedingly while this church monarchy multiplies its purposes and multiplies its power? Has the nation so little regard for its own dignity and the safety of its institutions and its people that it will permit a church monarch like Joseph F. Smith to defy the laws of the country, and to override the law and to overrule the administrators of the law in his own State of Utah?

What shall the Americans of that Commonwealth do if the people of the United States do not heed their cry?

The vast majority of the Mormon people are law-abiding, industrious, sober, and thrifty. They make good citizens in every respect except as they are dominated by this monarchy, which speaks to them in the name of God and governs them in the spirit of Mammon. Any remedy for existing evils which would injure the mass of the Mormon people would be most deplorable. I believe that they would loosen the chains which they wear if it

were possible. I think that many of them pay blood-money tithes simply to avoid social ostracism and business destruction. I believe that many of them do the political will of the church monarch because they are led to believe that the safety of the church monarchy is necessary in order that the mass may preserve the right to worship God according to the dictates of their conscience. The church monopoly, by its various agencies, is usually able to uprear the injured and innocent mass of the Mormon people as a barrier to protect the members of that monarchy from public vengeance.

It is the duty of this great body—the Senate of the United States—to serve notice on this church monarch and his apostles that they must live within the law; that the nation is supreme; that the institutions of this country must prevail throughout the land; and that the compact upon which statehood was granted must be preserved inviolate.

May heaven grant that this may be effective and that the church monarchy in Utah may be taught that it must relinquish its grasp.

I would not, for my life, that injury should come to the innocent mass of the people of Utah; I would not that any right of theirs should be lost, but that the right of all should be preserved to all.

If the Senate will apply this remedy and the alien monarchy still proves defiant, it will be for others than myself to suggest a course of action consistent with the dignity of the country.

In the meantime we of Utah who have no sympathy with the now clearly defined purpose of this church monopoly will wage our battle for individual freedom; to lift the State to a proud position in the sisterhood, to preserve the compact which was made with the country, believing that behind the brave citizens in Utah who are warring against this alien monarchy stands the sentiment and power of eighty-two millions of our fellow-citizens.

[Transcriber's Note:

The following typographical errors were corrected:

tryanny to tyranny, autocracts to autocrats, monorchy to monarchy.]

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UTAH ***

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